

DIPLOMATIC TRANSCRIPTION

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This Deed made this the 28th day of February A.D. 1880 between Samuel Barnes and Mary J. Barnes, his wife, of the County of Athens, State of Ohio of the first part, and the Overseers of the Poor of Kanawha County, State of West Virginia of the second part Whereas the County Court of Kanawha County, at a special and fiscal term thereof, on the 20th day of December 1879 gave consent to the said Overseers to purchase the real estate hereinafter described for a price not exceeding \$1700. Now therefore this deed Witnesseth: that for and in consideration of the sum of Seventeen Hundred Dollars payable in Kanawha County Orders One half out of levy of 1880, and the other half out of the levy of 1881, said orders to bear interest at the rate of six per centum per annum from this date till paid, the said parties of the first part have granted, bargained and sold, and by these presents do grant bargain and sell unto the said Overseers of the Poor of Kanawha County a certain tract of land situate in said County, and adjoining the Poor House farm, and bounded as follows to wit: Beginning at a stone on Kanawha river corner to lot No. 9 [?] laid down on the plat filed with the report of the Commissioners made in the suit for partition thence N. 30 E. $60\frac{2}{3}$ poles to a hickory on the back line S. 88 W. 28 poles to a pine and white oak thence S. 30 W. $61\frac{1}{2}$ poles to a stone on the river bank, thence down the river as it meanders 26 poles to the Beginning. Containing 38 acres bottom land and $62\frac{1}{4}$ [or $64\frac{1}{4}$?] acres of Hill land be the same more or less, this being a sale in gross and not by the acre, and being lot No. ten (10) in the partition aforesaid and allotted and conveyed to the said Samuel Barnes by the Commissioners appointed by the Circuit Court of said County in the Chancery Cause therein pending, in which Samuel Barnes was plaintiff, and Mary Barnes and others were defendants and reference is made to said partition Deed of record in the Clerk's office of the County Court of said County in Deed Book No. 27 pages 354 to 358 for a more particular description of said tract of land. The parties of the first part Covenant to give to the parties of

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the second part immediate and peaceable possession of said land and to warrant generally the property hereby conveyed and expressly reserve their Vendors lien to secure the payment of the orders given for the purchase money for said land.

Witness the following signatures and seals

Samuel Barnes (Seal)

Mary J. Barnes (Seal)

Committee Report

In pursuance of an order of the County Court of Kanawha County made December 20th 1879 authorizing the Board of Overseers of the Poor of Kanawha County to purchase the lot of land owned by Samuel Barnes lying adjacent to the farm now owned by the County and used as a poor farm, said lot of land containing about 100 acres, for the sum of \$1700, to be paid in County Orders bearing interest at 6 per cent per annum until paid we would respectfully represent that we as a majority of the Committee appointed to effect said purchase have made said purchase at the sum specified, and ask the County Court to issue the proper orders for the payment of the purchase money. The deed is herewith filed.

Charleston March 10, 1880

Wm. A. Key, Prest.

J. T. Brodt, Clerk

W. J. Miller.

Certificate of Acknowledgment — Samuel Barnes

State of West Virginia Kanawha County SS

I, J. T. Brodt, a justice in and for said County do Certify that Samuel Barnes whose name is signed to the writing above bearing date on the 28th day of February 1880 has this day acknowledged the same before me in my said County.

Given under my hand this the 1st day of March 1880.

J. T. Brodt, J. P.

Kanawha County West Virginia

Certificate of Acknowledgment — Mary J. Barnes

State of Ohio Athens County SS

I, J. R. Hickman a notary public in and for said County do Certify that Mary J. Barnes the wife of Samuel Barnes whose names are signed to the writing above bearing date on the 28th

day of February 1880, personally appeared before me in the County aforesaid, and being examined by me privily and apart from her husband, and having the said writing fully explained to her, she the said Mary J. Barnes acknowledged the said writing to be her act and declared that she had willingly executed the same, and does not wish to retract it.

Given under my hand and notarial seal this 6th day of March 1880.

(Seal)

J. R. Hickman, Notary Public.

Clerk's Entry

Kanawha County Court Clerk's Office March 11th 1880.

This Deed was this day presented to me in my office and the same together with the certificate thereto annexed is admitted to record.

Teste Hamilton Morris Clerk

Kanawha County Court

Transcriber's Notes

The top of folio 51 holds the end of a different deed (W. J. Blackshear and Mahala Blackshear, certified January 1880). Only the Barnes deed is transcribed here.

Readings I am less sure of: the lot number in "corner to lot No. 9," the hill-land acreage (62¼ or 64¼; the Committee Report says about 100 acres in all), and the fractions in the pole measurements (60⅔ and 61½).